CONTRACTS (SECTION D)

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ASSIGNMENT NO. 1, FALL 2025

THIS IS A TAKE-HOME ASSIGNMENT

EXAM DATE: ANY DAY BEFORE OCTOBER 10, 2025

INSTRUCTIONS

Answer the questions below in <u>not more than two pages, single-spaced, Times New Roman or Aptos, font 12.</u>

Please read the question carefully. State and discuss the relevant rules that govern the issues, apply the rules to the appropriate facts, and set forth a conclusion that resolves the issues. **Where appropriate, use the cases discussed in class to support your discussion of the relevant rules and bolster your analysis**.

This assignment is designed to assess your knowledge. Accordingly, students may not collaborate and may not communicate in any form with anyone in responding to the question. **The rules and policies on academic integrity apply to this assignment.**

Email your response as a Word or PDF document with the file name:

Your name_Contracts Assignment 1_Fall 2025

Facts for Questions A and B

Alice was a senior partner in a large law firm. After 25 years of practicing law, she was very wealthy. But she was also burned-out and totally fed up with the practice of law. She wasn't ready to retire, but she wanted to find another career. She had always enjoyed skiing, so she decided that a ski resort would be the ideal business for her.

Among her many contacts was Paul, who was a business broker. He was in the business of helping people like Alice find businesses to buy. On November 5, when she was cleaning up her desk after a hard day of negotiating on behalf of clients, Alice wrote Paul the following e-mail:

> Paul:
>
> How's my favorite broker? Doing any deals lately?
>
> I've decided to hang it up with the practice of law. I'm going to buy a ski resort. You can make a quick hundred grand if you can find me one that meets my needs. I can pay as much as ten million for the right place if I can get the financing I need.
>
> If you find me the right property, I'll pay you a commission of up to $100,000. I know this is less than you're used to getting, but we're old friends, and I promise that I'll be easy to deal with.
>
> If this is OK, let me know as soon as possible. I'm not going to work with any other brokers, just you. I am sure you will find me something interesting. You don't have to commit to spending a lot of time on the deal. Just check out the market, and you may earn a quick hundred grand.
>
> With best wishes,
>
> Alice
>
> BTW – Disregard the stuff below this. The firm's server puts that on all the emails. Don't you just love paranoid lawyers? :):):)
>
> *This communication was sent by the law firm of Alice, Chang & Weinstein. It may contain confidential information protected by the attorney-client privilege. If you believe you have received this communication in error, destroy all copies and immediately telephone the sender.*
>
> *This communication does not reflect an intention by the sender or the sender's client to conduct a transaction or make any agreement by electronic means. Nothing contained in this message or in any attachment shall satisfy the requirements for writing and nothing contained herein or therein shall constitute a contract or a signature*.

When Paul got the email, he ignored it because he wasn't interested in ski resorts. He had a couple of hot biotech deals going, and he wasn't going to be distracted from them for a deal that could only bring him a hundred thousand.

About a week later, however, (November 15 to be exact), the weather turned cold, and Paul's mind turned to snowboarding. He decided that he would play around with Alice's idea. He began an intensive study of the winter resort industry. It was mostly to satisfy his own curiosity, but he was thinking there was the possibility he might, by chance, run across something that would be suitable for Alice. As sometimes happens, he got carried away with the project, and he began spending an inordinate amount of time looking for a deal for Alice. Finally, he discovered a resort that was exactly what Alice was looking for. It was a small resort that drew customers from a nearby city. It didn't have much challenging terrain. In fact, it didn't have much terrain at all. But what can you expect for a lousy ten million? Paul first learned of the availability of the resort on November 22, after spending all of that day and most of the previous two days searching on the Internet, telephoning real estate brokers in the mountainous areas of six provinces and one territory, and checking out a lot of resorts that turned out to be unsuited to Alice's needs.

On November 23, he sent the following e-mail to Alice:

> Alice:
>
> I have found a great property for you. The owner wants too much for it, of course. They always do. But I'm confident we can get him down to your max price and probably a bit below. The owner is getting old, and he wants to retire to Mexico.
>
> Details to follow by snail mail. There is still a place for it:)
>
> Best, Paul

In the meantime, on November 22, Alice, infuriated by Paul's lack of response to her earlier email and wanting to have tangible written confirmation of her position, Alice sent the following letter to Paul by Canada Post (registered mail):

> Paul:
>
> I am astonished that you have failed to respond as requested to my email message of November 5. Accordingly, I hereby withdraw any offer which I may have made to you in that message or any other way.
>
> Very truly yours,
>
> Alice

Paul received the letter on November 25.

A. Discuss whether Alice's letter of November 5 constituted an offer at common law.

B. Assume Alice's letter of November 5 constituted an offer. Discuss whether Paul accepted Alice's offer at common law.